

14. 9:00 AM CASE NUMBER: C25-02672
CASE NAME: RANDY GATEWOOD VS. CHANELL JACKSON
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY: GATEWOOD, RANDY
TENTATIVE RULING:

ATTACHMENT A

LINE 14: RANDY GATEWOOD VS. CHANELL JACKSON (C25-02672)

Rhonda Kraeber (“Counsel”) filed a Motion to be Relieved as Counsel on January 29, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on June 15, 2026. By the Court’s Order entered March 10, 2026, the Motion to be Relieved as Counsel was advanced for hearing to March 30, 2026. Notice was duly given.

Background

Counsel seeks to be relieved as attorneys for plaintiff Randy Gatewood (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to a lack of communication and non-payment issues. See Declaration filed January 29, 2025, ¶2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13; see also Notice of Hearing filed February 26, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court reviewed and rejects the lodged form of order (“Updated Order Granting Attorney’s Motion to be Relieved as Counsel—Civil” lodged February 26, 2026). Paragraphs 6 and 7 of the proposed form of order are incomplete. The information in Paragraph 8 should be in Paragraph 7. Box 5.a. should be checked. **Counsel is directed to correct and resubmit a further revised form of order.**

15. 9:00 AM CASE NUMBER: MSC21-00476
CASE NAME: FLEXSQUARE LLC VS EGHTEHAD
*HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO OBEY DISCOVERY ORDERS
FILED BY: EGHTEHAD, NADER
TENTATIVE RULING:

Defendant Nader Eghtesad (“Defendant”) filed a motion to dismiss this action for failure to obey discovery orders on November 6, 2026 (the “Motion to Dismiss”). The Motion to Dismiss was set for hearing on March 30, 2026. Notice was duly given.

Background

Defendant's Motion to Dismiss is made pursuant to Code of Civil Procedure sections 2023.030 (d)(3) and 2031.310(i) for failure to comply with prior discovery orders issued by the Court, including the Court's July 2025 Discover Order and October Discovery 2025 Order, as described further below.

The Court approved, and adopted as its order, the recommendations of the appointed discovery referee that, among other things, plaintiff FlexSquare, LLC ("Plaintiff") make further responses to certain discovery propounded by Defendant. This included making further verified responses and corresponding document production as to the request Nos. 1 through 22 of a Requests for Production (Set Three). See Report and Recommendation and order thereon filed July 31, 2025 (the "July 2025 Discover Order"). In addition, Plaintiff was ordered to provide further verified responses to Form Interrogatory No. 17.1 with respect to certain requests for admissions propounded (Nos. 7, 8, 18 and 36).

After Defendant brought an earlier motion for termination sanctions, the Court found that Plaintiff had failed to provide further verified discovery responses, including discovery responses that were the subject of the July 2025 Discover Order. See Order after Hearing entered October 6, 2025 (the "October 2025 Order") (regarding the proceedings heard on September 29, 2025).

In doing so, the Court made express findings as to Plaintiff's blatant non-compliance with discovery obligation and the extended history of that non-compliance, including violation of court orders for discovery. As addressed at length in the Court's October 2025 Order:

What becomes evident from the instant motion is plaintiff's dismal, and potentially contemptible, responses to defendant's repeated efforts to obtain discovery. Quite simply and plainly, the actions by plaintiff during the discovery process are inappropriate and preclude the defendant from proceeding in a manner that the legislature intends through the Discovery Act. Additionally, plaintiff's actions fail to meet what this court customarily expects in the discovery process. This is not the first time in the lawsuit that the actions of the plaintiff's counsel have come into question. (See Order after Hearing, May 13, 2024.)

See October 2025 Order, p. 1.

The prior ruling referenced in the October 2025 Order was an order entered on July 2, 2024 after a hearing conducted May 13, 2024. In that order, the Court had observed:

Plaintiff's counsel repeatedly and improperly prevented questions regarding Flexsquare LLC's loss of income claim. This occurred against a legal and factual backdrop where Plaintiff's counsel did not serve any objections to the notice of deposition, including the request for documents. (Code Civil Proc. §2025.410(a).) While admittedly, plaintiff's counsel did object to a later notice of deposition.

The communications and agreements reached between counsel for plaintiff and defendant are somewhat opaque. As a result, this court does not award any sanctions due to that lack of clarity of those communications. Nonetheless, plaintiff's counsel is reminded about the professional standards that must necessarily guide an individual's practice of law, including conduct during a deposition. Some of plaintiff's counsel's comments during the course of the deposition were inappropriate, and he should redouble his efforts to refrain from them, especially those *ad hominem* in nature.

See Order after Hearing entered July 2, 2024 (the "July 2024 Order") regarding the proceedings heard on May 13, 2024.

Against this backdrop, the Court, in the exercise of its discretion, resolved to give Plaintiff a final opportunity to come into full compliance before resorting to the drastic remedy of terminating or other further sanctions. See October 2025 Order, p. 2.

The Court admonished Plaintiff regarding the continued non-compliance and warned of the possible imposition of significant further monetary sanctions or terminating or the granting of terminating sanctions if the non-compliance continued. See October 2025 Order, p. 2 ("Plaintiff is put squarely on notice that any further non-compliance with court orders, including this order requiring further prompt action by plaintiff, might result in the termination of this lawsuit.").

The Court ordered that Plaintiff provide the previously ordered discovery and monetary sanctions to Defendant:

- Plaintiff and its counsel shall immediately provide the already ordered discovery and sanctions to defendant, and in no event, later than October 20, 2025.

See October 2025 Order, p. 2.

Analysis

Defendant contends that the Court should impose terminating sanctions because Plaintiff has not served code-compliant responses to Defendants' Requests for Production, Set Three that were the subject of the Court's July 2025 Discover Order and October Discovery 2025 Order.

The Court recited the present state of non-compliance in its October 2025 Order:

Presently, plaintiff's counsel has failed to provide further verified responses and corresponding document production as to defendant's Request for Production Nos. 1-2, as ordered by the court. Moreover, plaintiff's counsel failed to provide further verified responses to defendant's form interrogatories 17.1 with respect to Request for Admissions Nos. 7, 8, 18, 35 & 36. Finally, plaintiff and its attorneys of record have not paid \$2,800 in sanctions. All of these were recommended by the discovery referee, Hon. Russell L. Hom (Ret.), and adopted by the court via subsequent order filed July 31, 2025.

See October 2025 Order, p. 2.

First, it should be noted that the reference above to "1-2" appears to be in error, as the underlying order at issue was directed at "Defendant's Production Nos. 1-22" of a Set Three of document production requests, among other things.

Defendant acknowledges that amended responses were served on October 20, 2025, the Court imposed deadline. However, Plaintiff takes issue with the content of those responses, arguing that they were not code-compliant based on the language of the responses and that this violated a prior order and amounting to continued non-compliance.

Defendant observes that the prior order specifically addressed the requirements for a statement of compliance to be code-compliant. See July 2025 Discover Order, p. 5. The order goes on to observe in detail how the statements of compliance in Plaintiff's responses are not code-compliant. *Id.* at p. 10. Among other things, the order found that statement to the effect that Plaintiff **"will produce all non-privileged documents that appear to be responsive to this demand"** are insufficient under Code of Civil Procedure section 2031.220. The order proceeds to explain, in detail, the requirements of Section 2031.220. *Id.*

"Responding party will produce all non-privileged responsive documents in responding party's possession, custody or control." See e.g. Response to RPD No. 1 of Request for Production of Documents Set Three, Declaration Stephanie Guerra filed November 6, 2025 filed as part of Motion to Dismiss ("Guerra Decl.") (emphasis added). Plaintiff made the substantially same response (after a litany of boilerplate objections) to most of the requests.

This amended form of response is a sufficient code-compliant response. See Code Civ. Proc. §§ 2031.210(a) ("among the appropriate options for a response is a "statement that the party will comply with the particular demand for inspection") and 2031.220 ("[a] statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production"); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Weil & Brown") § 8:1469.

The response language amounts to a representation the inspection will be allowed in whole and expressly includes all responsive documents in Plaintiff's "possession, custody, or control." There are not qualifications on the compliance statement such as were contained in the prior responses (limiting the compliance to documents that "**appear to be responsive**" without statement that all documents in Plaintiff's possession, custody, or control will be included in the production).

While there may be some issues with the boilerplate objections, that would have been a matter for a motion to compel further responses. The Court does not conclude that any issue with those objections justifies the drastic remedy of terminating or other extraordinary sanctions.

Defendant also notes that Plaintiff failed to provide any amended response to No. 22. See e.g. Response to Request for Production of Documents Set Three, Declaration, Guerra Decl., **Exhibit 8**.

While it does appear that Plaintiff failed to provide an amended response to No. 22, as ordered, the Court does not conclude that this issue warrants terminating or other extraordinary sanctions at this stage of the proceedings.

The Court does not conclude that any of the other issues raised justify the imposition of terminating or other extraordinary sanctions.

If documents were improperly withheld during discovery, there may be further appropriate remedies available at trial.

In light of the foregoing, the Court need not address the opposition argument based on the discovery motion hearing cutoff date. See Code Civ. Proc. § 2024.020.

Disposition

The Court finds and rules as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: N25-2244

CASE NAME:

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Petitioner Leyla Ramirez Mejia ("Petitioner") filed a Petition for Approval of Compromise of Claim on or about November 14, 2025 seeking court approval of the compromise and proposed disposition set forth therein as to the claimant minor Ashley Mejia Ramirez (the "Minor's Compromise"). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on March 30, 2026.

Analysis